

24STCV04204 24STCV04204

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 24STCV04204 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT JAJ2, LLC'S NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE THE COMPLAINT OF KATHERINE D. KELLER FOR MALICIOUS PROSECUTION AND VIOLATION OF THE BANE ACT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16 Dept. 731 9:30 a.m. July 14, 2024

Moving Party: Defendant JAJ2, LLC

Opposing Party: Plaintiff, Katherine Keller

Notice: OK

Before the Court is Defendant Doe 2 JAJ2, LLC,'s anti-SLAPP motion against the Complaint's two causes of action, which are alleged against it by way of alter ego. Plaintiff filed an opposition with a request for judicial notice, and Defendant filed a reply and evidentiary objections.

After review, and though not directly raised in the opposition, the Court DENIES Defendant's motion for lack of proper notice and identification of claims at issue in this anti-SLAPP motion.

To meet its burden under the anti-SLAPP statute, a defendant must identify all allegations of protected activity and all claims for relief that arise from the defendant's protected acts. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) In a recent court of appeal opinion, the court held that a Defendant did not

meet its identification burden when the motion listed page and line numbers to strike, but those numbers simply corresponded to prayer for relief and all of complaint's causes of action in their entirety. (*Littlefield v. Littlefield* (Nov. 15, 2024) 106 Cal.App.5th 815, 826.)

Here, Defendant's notice of motion and memorandum go defectively further, neither identifying page numbers nor lines to challenge on anti-SLAPP. This is fatal because, on an anti-SLAPP motion, each claim must be identified, regardless of whether all or only some of the claims in a count—often and confusingly for anti-SLAPP purposes referred to by counsel as “cause of action,” e.g., first, second, third cause of action—are being challenged. (See *Bonni v. St. Joseph Health Sys.* (2021) 11 Cal.5th 995, 1010-1011 (*Bonni*).) Stated otherwise, following *Bonni*, it is clear that in ruling on an anti-SLAPP motion, the Court is analyzing each separate claim for relief within challenged counts (usually misnamed “causes of action” one, two, three, etc. in pleadings) to determine whether the alleged acts in each count are protected, not whether the essence or gravamen of the sum of the allegations in the count leans towards protected activity. (*Ibid.*)

Defendant JAJ2, LLC's anti-SLAPP motion is accordingly DENIED.

Based on the dispositive result above, the Court does not address other requests or arguments before the Court, e.g., opposition request for judicial notice, reply objection to opposition memorandums' length, first- and second-prong anti-SLAPP arguments.

Defendant JAJ2, LLC, is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's

email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 14, 2026 _____

MARK C. KIM

Judge of the Superior Court